

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202200125	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/04/2022 2:58 PM	Location of Incident: 924 Columbus Avenue	Precinct: 24	18 Mo. SOL 7/4/2023	EO SOL 7/4/2023	
Date/Time CV Reported Thu, 01/06/2022 1:31 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/06/2022 1:31 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Giovanni Ortiz	23202	971169	024 PCT
2. PO Mateusz Kopec	15093	964098	024 PCT
3. PO Jonathan Guillen	04327	964539	024 PCT
4. PO David Freund	25171	963035	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Jonathan Guillen	Force: Police Officer Jonathan Guillen used physical force against § 87(2)(b)	
B. PO David Freund	Force: Police Officer David Freund used physical force against § 87(2)(b)	
C. PO David Freund	Abuse: Police Officer David Freund forcibly removed § 87(2)(b) to the hospital.	
§ 87(2)(g)		
§ 87(2)(g)		
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 6, 2022, § 87(2)(b) called the CCRB and filed this complaint over the call processing system.

On January 4, 2022, at 2:49 PM, § 87(2)(b) was at the Boost Mobile store at 924 Columbus Avenue in Manhattan and had a verbal dispute with the Boost Mobile employee, § 87(2)(b) (unknown first name). § 87(2)(b) called 911 and Police Officer David Freund, Police Officer Jonathan Guillen, Police Officer Mateusz Kopec, and Police Officer Giovanni Ortiz, all of the 24th Precinct, responded to the location at 2:58 PM. PO Guillen and PO Freund forcibly removed § 87(2)(b) from the store (**Allegations A and B – Force – § 87(2)(g)**). PO Freund forcibly removed § 87(2)(b) to the hospital (**Allegation C – Abuse of Authority – § 87(2)(g)**).

§ 87(4-b) § 87(2)(g)

This case was originally assigned to Investigator Charis Jones and was reassigned to Investigator Edward Tsigel on November 16, 2022.

The CCRB received four Body Worn Camera (BWC) videos (BR 03 - 06) of this incident. There was no arrest made or summons issued as a result of this incident.

Findings and Recommendations

Allegation (A) Force: Police Officer Jonathan Guillen used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer David Freund used physical force against § 87(2)(b) It is undisputed that on January 4, 2022, at approximately 2:49 PM, § 87(2)(b) (BR 01) was at the Boost Mobile store at 924 Columbus Avenue and had a verbal dispute with an employee, § 87(2)(b). § 87(2)(b) called 911 and PO Freund (BR 02), PO Guillen, PO Kopec, and PO Ortiz, responded to the location at 2:58 PM. § 87(2)(b) told the officers that she wanted § 87(2)(b) to leave the store. All of the officers asked § 87(2)(b) to leave and she refused. PO Guillen and PO Freund forcibly escorted § 87(2)(b) out. § 87(2)(b) could not describe the officers' actions.

PO Freund (BR 02) stated that he and PO Guillen physically escorted § 87(2)(b) out of the store by holding her arms and shoulders and guiding her out of the store. They did so because she refused to leave the store after § 87(2)(b) requested her to, and she was therefore trespassing.

PO Guillen was not interviewed because the investigation was able to make a determination without his statement.

From 0:00 to 1:40 of PO Kopec's BWC (BR 03), the officers enter the Boost Mobile store and speak to § 87(2)(b) and § 87(2)(b). § 87(2)(b) says that § 87(2)(b) was disruptive and was asked to leave the store, and she refused. At 1:40, PO Freund confirms from § 87(2)(b) that she wants § 87(2)(b) to leave the store. § 87(2)(b) and PO Freund tell § 87(2)(b) that she needs to leave and she refuses again. At 2:20, PO Freund and PO Guillen grab § 87(2)(b) by her arms and shoulders and guide her out of the store. There is no additional force used. § 87(2)(b) appears to resist the officers by leaning her body backwards while she is being escorted. PO Freund's (BR 04), PO Guillen's (BR 05), and PO Ortiz's (BR 06) BWC videos are consistent with PO Kopec's BWC video and provide additional angles of the incident.

NYS Penal Law 140.00 and 140.05 (BR 07) states that a person is guilty of trespassing when they enter or remain unlawfully in or upon a premises when they are not licensed or privileged to do so. A person who, regardless of their intent, enters or remains in or upon premises which is at the time open to the public does so with license and privilege unless he defies a lawful order not to enter or remain, personally communicated to them by the owner of such premises or other authorized person.

Patrol Guide Procedure 221-02 (BR 08) states that when a member of service must gain compliance, control, or custody of an uncooperative subject, they should apply no more than the

reasonable force necessary to gain control of the subject.

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer David Freund forcibly removed § 87(2)(b) to the hospital.

It is undisputed that after § 87(2)(b) (BR 01) was escorted out of the Boost Mobile store, the officers handcuffed her and told her that she was going to be taken the hospital. § 87(2)(b) told the officers that she did not need to go to the hospital. § 87(2)(b) asked the officers to transport her to the hospital in their police vehicle instead of waiting for the ambulance. PO Kopec and PO Ortiz removed her to St. Luke's hospital in their police vehicle.

PO Freund (BR 02) stated that once § 87(2)(b) was escorted out of the Boost Mobile store, she attempted to reenter the store. The officers prevented her from doing so and told her that she could not reenter. PO Freund told her that she needed to leave the location because she tried to reenter the store. § 87(2)(b) refused to leave. § 87(2)(b) then punched PO Guillen in his left arm with her right fist. PO Freund told her that she could not do that to an officer and she began to scream at the officers because they would not let her back into the store.

PO Freund deemed § 87(2)(b) to be an emotionally disturbed person (EDP) because she was screaming, refusing to leave the location and punched PO Guillen and she seemed "off" to him. There was no other reason why he deemed her as an EDP. He did not believe she was under the influence or mentally ill. He believed that she could potentially injure nearby pedestrians, or § 87(2)(b) once the officers left because she had already punched PO Guillen. He stated that he did not know § 87(2)(b)'s strength level or intent to cause harm, however, she did not verbally or physically indicate in any way that she would harm herself, officers, or any other people. He stated that the officers made a joint decision to handcuff § 87(2)(b) and remove her to the hospital because she was an EDP.

From 2:20 to 3:50 of PO Kopec's BWC (BR 03), § 87(2)(b) screams at the officers outside of the Boost Mobile store and attempts to reenter the store. The officers tell her that she cannot enter the store and needs to leave. At 3:50, § 87(2)(b) says, "Don't push me" and slaps PO Guillen's left arm with her right hand. At 4:00, PO Freund approaches § 87(2)(b) and tells her, "You're either going, or you're going to the hospital." § 87(2)(b) continues to yell at PO Freund and refuses to leave the location. At 4:30, PO Freund grabs § 87(2)(b)'s arms and begins to handcuff her. The other officers assist him while § 87(2)(b) resists by tensing her arms. PO Freund then states that she is an EDP. Between 5:00 and 12:30 the officers request an ambulance and wait for it to arrive. At 6:25, § 87(2)(b) says that the officers have no right to take her to the hospital. At 10:00, § 87(2)(b) suggests that they walk to the hospital or the officers take her there in the patrol car because it is close by. At 11:50, PO Freund calls a supervisor and confirms that they can take § 87(2)(b) to the hospital in a patrol car. Between 12:30 and 18:27, PO Kopec and PO Ortiz transport § 87(2)(b) to St. Luke's hospital in their police vehicle. PO Freund's (BR 04), PO Guillen's (BR 05), and PO Ortiz's (BR 06) BWC videos are consistent with PO Kopec's BWC video and provide additional angles of the incident.

NYPD Patrol Guide Procedure 221-13 (BR 09) defines an emotionally disturbed person (EDP) as one who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Officers are to take emotionally disturbed persons into custody and bring them to a hospital.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

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- Police Officer Jonathan Guillen has been a member of service for five years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(b) (g)
- Police Officer Mateusz Kopec has been a member of service for five years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(b) (g)
- Police Officer Giovanni Ortiz has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 27, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 16 _____

Investigator:	_____ Inv. Tsigel Signature	_____ Investigator Edward Tsigel Print Title & Name	_____ 01/03/2023 Date
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Squad Leader:	_____ Patrick Yu Signature	_____ IM Patrick Yu Print Title & Name	_____ 01/10/2023 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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